
Sheringham Primary Audit Report**Audit Date: 21 January 2020****Report: Year 2 visit 2****DPE: Linda Mortimer****School member: Headteacher – Rachel Carter H/T and Zoe Law SSM**

1. Visit details

Details highlighted at the time of the last visit were discussed and Sheringham Primary has made significant progress since the last visit on the 8 October 2019. GDPR documents and policies were reviewed as well as the new Data Dashboard on Knowledge Bank. The school's progress with Best Practice Compliance Checklists was discussed as well as the requirement for data mapping and the DPE Record of Processing tool (which was not accessible at the time of the visit). The school has also used the DPE Compliance Manager to share documents and policies with staff but cannot access which staff have 'read and understood' the documents. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 7 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 6.1 below). For information: James England's reply to the outcome of the NCC Themed Audit can be found under the 'news' tab on Knowledge Bank.

Review actions recommended at time of previous visit – 8.10.19

All items raised at the time of the previous audit have been addressed as follows:

The school has considered the suggestions made by DPE at the time of the last visit and have again reviewed the data risks of keeping medical information and equipment in each classroom. The school concludes that it is in the best interest of their students to continue with this practice. However, medical information is now kept in more secure folders, located in a discreet area of the classroom.

In the vast majority of classrooms, only student's first names appear on work books, exercise books and trays. The school will be using first name only by the start of the next academic year.

Student's actual date of birth are no longer on display on birthday displays.

UEA students are only provided with student information once they are actually attending their student placement at Sheringham Primary.

2. Audit walk and findings on 21.1.20

Signing-in arrangements: The school uses the Cherry Carbonless signing in system and all visitors are signposted to the school's Privacy Notice, on the school website.

School Kitchen: Operated by Norse – operate with folder system containing details of student allergy information.

Staffroom: Staff pigeon holes located in the Headteacher's corridor were found to be clear of confidential / sensitive documents. Staff are regularly reminded to keep pigeon holes clear. This corridor is locked at the end of the day, therefore providing greater security.

Photo Storage and Data Cleansing: This was discussed and a robust procedure for cleansing images from school iPads and cameras will be introduced by the end of the academic year.

Student Image Cleansing: EYFS needs to be aware of the importance of regular cleansing and uploading of images taken using iPads / cameras to record student learning journeys. This will ensure that the minimum amount of images are stored on school devices at any one time and minimise risk should a device be lost or stolen. The school does have 'find my iPad' and 'Return to Factory Settings' installed on all devices and has actually used these facilities recently to ensure the safety of student images.

Policies: A number of DPE standard policies were recommended for the school to adopt at the time of the last visit. The majority of the recommended policies have been adapted for use by the school and submitted for ratification to the Governing Body at their meeting on 23.1.20. Once adopted the policies will be uploaded to the school website.

The Freedom of Information policy remains outstanding and the school will use the DPE standard policy. This will be referred to Governors for ratification in Spring /early Summer Term 2020.

Staff Training: A large percentage of staff have completed the online training. There are some Teaching Assistants, MSAs and Cleaners yet to complete Module 1 online. The school are actively supporting these staff to complete Module 1 and this should be finished shortly.

The school has experienced difficulties with Knowledge Bank password access for two members of staff and have referred this problem to DPE. LM will refer to DPE for action.

School Server: The school recently experienced a catastrophic failure with its server, which was only remedied by a replacement being installed. Back-ups of data proved to be accurate and robust. Finance data is backed-up separately. The school's main server is now sited at Woodfield School and the back-up server is located on the Sheringham site and these are managed by the school's own IT Technician.

2. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: [https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016 IRMS Toolkit for Schools v5 Master.pdf](https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf)
- DfE toolkit
[https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection Toolkit for Schools OpenBeta.pdf](https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf) (Annex 5,1)

2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>